DV-108 Request for Orders to Prevent Child Abduction

Case Number:

This form is attached to DV-105, *Request for Child Custody and Visitation Orders.*

(Use this form to ask for protection if you believe that the person in (2) might take the children without your permission and hide them from you.)

(1) Your Name: _____

(2) Name of Person You Want Protection From: _____

(3) Reasons I Am Afraid of Child Abduction

(In this section, explain to the judge why you believe there is a risk that the person in (2) will take your children without your permission and hide them from you. The judge will use the information below to decide whether to grant any orders you request on page 2.)

The person in (2) *(check all that apply):*

a. ☐ Has violated or threatened to violate a custody or visitation order.

b. ☐ Does not have strong ties to California.

c. ☐ Has done things recently that make it easy to take our children, like *(check all that apply):*

- ☐ Quit a job
- ☐ Closed a bank account
- ☐ Sold or gotten rid of property
- ☐ Sold a home or ended a lease
- ☐ Applied for a passport, birth certificate, or school or medical records
- ☐ Hidden or destroyed documents
- ☐ Other *(explain):* _____

d. ☐ Has a history of:

- ☐ Abusing me
- ☐ Child abuse
- ☐ Abusing other partners
- ☐ Taking away or hiding our children from me
- ☐ Threatening to take away or hide our children from me
- ☐ Not cooperating with me in parenting

e. ☐ Has a criminal record

f. ☐ Has strong ties in:

- ☐ Another county in California *(list county):* _____
- ☐ Another state *(list state):* _____
- ☐ Another country *(list country):* _____

g. ☐ Is a citizen of another country *(list country or countries):* _____

Does the person in (2) have strong family, cultural, or emotional ties to that country? ☐ Yes ☐ No

Give examples or reasons for your answers above:

_____

_____

_____

_____

The statements made above are made under penalty of perjury as declared on the request form (DV-100, (32)).

This is not a Court Order.

Case Number:

Orders a Judge Can Make to Prevent Abduction

In this section, you can ask for orders to prevent the person in (2) from abducting (kidnapping) your children.

Check all the orders that you want a judge to make (order).

(4) ☐ Do Not Move With Children Without Permission

I ask the judge to order that the person in (2) not move with our children without my written permission or the judge's permission.

(5) ☐ Turn In and Do Not Apply for Passports or Other Important Documents

I ask the judge to order the person in (2) to not apply for passports or other documents that can be used for travel, like visas and birth certificates, and to turn in the following documents: _____

by *(date):* _____ to *(name of person to give documents to):* _____

(6) ☐ Provide Travel Plan and Documents

If the person in (2) is allowed to travel with our children, the person in (2) should be ordered to give me:

(Check all that apply.)

- ☐ Children's travel schedule
- ☐ Copies of round-trip airline tickets
- ☐ Addresses and telephone numbers where the children can be reached
- ☐ An open airline ticket for me in case the children are not returned.
- ☐ Other *(describe):* _____

(7) ☐ Notify Other State of Travel Restrictions

I ask the judge to order the person in (2) to register this order with

(list county and state): _____ before the children can travel to that state for visits.

(8) ☐ Notify Foreign Embassy or Consulate of Passport Restrictions

I ask the judge to order the person in (2) to notify *(name of embassy or consulate):* _____

of this order and to file proof of the notification with the court by *(date):* _____

(9) ☐ Foreign Custody and Visitation Order

I ask the judge to order the person in (2) to get a custody and visitation order equal to the most recent U.S. order before the child can travel to *(list country):* _____ for visits.

(Note that foreign orders may be changed or enforced depending on the laws of the country.)

(10) ☐ Post a Bond

I ask the judge to order the person in (2) to post a bond for $ _____.

If the person in (2) takes the children without my permission, I can use this money to bring the children back.

This is not a Court Order.

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